

should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval. Under these circumstances, it appears that a lodestar analysis would be appropriate.

Similarly, the requested representative payment of \$3,629.90 for plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

D. Conclusion

The Court finds that, with the two supplements to the record, the proposed agreement is sufficiently fair, reasonable, and adequate to justify preliminary approval, and the motion is granted.

Counsel are directed to prepare an order reflecting this tentative ruling, the items in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court. Once the cy pres amount is determined, the judgment must be amended to so reflect. (CCP § 384.5.)

2. 9:00 AM CASE NUMBER: C23-00688

CASE NAME: BROUWER VS. REDWOOD HOLDINGS, LLC

***HEARING ON MOTION IN RE: TO DIMISS CASE PURSUANT TO 08/04/23 COURT ORDER**

FILED BY: REDWOOD HOLDINGS, LLC

TENTATIVE RULING:

Defendant Redwood Holdings, LLC moves for entry of a dismissal of plaintiff’s complaint pursuant to Code of Civil Procedure section 581(f)(2), which provides for dismissal” after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal.” On July 27, 2023, the court sustained defendant’s demurrer to the entire complaint, with leave to amend. The minute order specified that any amended complaint was to be served and filed by August 7, 2023.

On July 27, 2023, plaintiff filed a notice of appeal (according to the Court of Appeal docket).

The order after hearing, entered August 4, 2023, stated that plaintiff’s last day to serve and file an amended complaint would be August 7, 2023. Notice of ruling was served August 4, 2023 and filed August 7, 2023. This was ten days from the court’s decision. The time to respond to the Court’s order, however, does not begin to run until notice of entry of order. Ten days from notice of entry of the order would be August 14, 2023.

On August 21, 2024, at a Case Management Conference, the minutes reflect that “Counsel Shalaby requests the court proceed on the matter despite the appeal as there are narrow issues not raised on appeal.” The minutes further state that “The Court refrains from proceeding at this time.” The Court

continued to hold Case Management Conferences during the appeal, but did nothing of substance, other than to appoint a Guardian ad Litem for the plaintiff

The Court of Appeal affirmed, and remittitur was issued July 17, 2025 (according to the Court of Appeal docket).

Defendant filed the pending motion July 28, 2025.

On October 13, 2025, plaintiff filed a First Amended Complaint.

Although plaintiff did not file an amended complaint by the initial August 7, 2023 deadline, she had filed an appeal on July 27, 2023, which had the effect of staying the proceeding immediately. (CCP § 916.) The Court's subsequent order of August 22, 2024, in which it "refrain[ed] from proceeding at this time" simply confirmed the existence of the stay.

Plaintiff's reliance on *Gilmed v. General Motors Corp* (1994) 26 Cal.App.4th 824, is misplaced, because in that case the plaintiff had already filed an amended complaint before the motion to dismiss was filed.

When the Court of Appeal issued its remittitur, the deadline to file an amended complaint was not clear. The originally specified date had long since passed. Arguably, this means that the "ten day" rule of CRC 3.1320(g) (which applies where the order does not specify time to amend) applied. Defendant filed this motion on the eleventh day after the remittitur was issued.

The decision to grant or deny a party's motion to dismiss is within the judge's discretion. (*Nuno v. California State Univ., Bakersfield* (2020) 47 Cal.App.5th 799, 807. Based on the long period during which the appeal was pending, and the fact that defendant filed this motion on the eleventh day after the remittitur, the Court exercises its discretion to deny the motion. Defendant has 30 days to file a pleading in response to the First Amended Complaint.

3. 9:00 AM CASE NUMBER: C23-02106
CASE NAME: SANTIAGO MORALES VS. DWELLEY FAMILY FARMS, LLC

***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL**

FILED BY: MORALES, SANTIAGO MERINO

TENTATIVE RULING:

Plaintiff Santiago Merino Morales moves for preliminary approval of his class action and PAGA settlement with defendant Dwelley Family Farms, LLC.

A. Background and Settlement Terms

The original complaint was filed by Plaintiff on August 23, 2023, raising class action claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. A First Amended Complaint adding PAGA claims (based on a notice to the LWDA given on August 23, 2023), was filed on October 26, 2023. A Second amended Complaint was filed on